

Court No. - 3

Case :- WRIT - C No. - 41326 of 2015

Petitioner :- Bahabuddin @ Raju & Another

Respondent :- Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Krishna Murari, J.

Hon'ble Amar Singh Chauhan, J.

Sri Pranjal Mehrotra who has accepted notices on behalf of respondents no. 1 & 2, prays for and is allowed ten days time to seek instruction in the matter.

Put up as fresh on 18 August, 2015.

Till then no coercive action shall be taken against the petitioners in pursuance of the impugned recovery citation.

Order Date :- 6.8.2015/nd

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Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Krishna Murari,J.

Hon'ble Amar Singh Chauhan,J.

Heard Sri R.P.S. Chauhan, learned counsel for the petitioners, learned Standing counsel for the State respondents and Sri Pranjal Mehrotra appearing for respondent nos. 1 and 2.

On 6.8.2015, Sri Pranjal Mehrotra, learned counsel for the respondent nos. 1 and 2 was granted time to seek instructions in the matter. He has produced before us the copy of the instructions which shows that provisional assessment notice dated 7.6.2014 was sent to the petitioners by ordinary post. It is contended on behalf of the petitioners that since he did not receive the copy of the provisional assessment notice, as such he could not submit his reply and in absence whereof the respondent treated it to be final and issued recovery certificate.

Sri R.P.S. Chauhan, learned counsel appearing for the petitioners has invited our attention to the contents of the notice dated 7.6.2014 as well as the provisions contained under Clause 6.8(b) (1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioners that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in **Ashok Kumar and others Vs. State of U.P. and others**, 2008(6) ADJ 660 (DB) from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioners were assessed to pay Rs. 6,22,106/-. The notice also does not specify the date for hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioners itself was not in accordance with law, we are of the opinion that petitioners were not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned notice dated 7.6.2014 and the recovery citation dated 15.6.2015 are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve the same upon the petitioners. The final assessment order shall be made after considering petitioners objection, giving reasons to meet the objections of petitioners in the light of observations made in Ashok Kumar (supra).

Order Date :- 18.8.2015

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